

Bechan Lal v. State of U.P. — demand-notice writ declined for alternative remedy

High Court of Judicature at Allahabad · Division Bench · 19 January 2017 · Writ-C No. 2556 of 2017 · **Writ dismissed; Court declined to entertain the demand-notice challenge because statutory alternative remedies under the U.P. Electricity Supply Code, 2005 or the Electricity Act, 2003 were available.**

HEADNOTE

A writ petition challenging an electricity demand notice is not entertainable where statutory alternative remedies under the U.P. Electricity Supply Code, 2005 or the Electricity Act, 2003 remain available. The High Court dismissed the petition without examining the demand on merits.

FACTUAL SUMMARY

Bechan Lal challenged a demand notice dated 21 December 2016 requiring him to deposit Rs.85,498. He filed a writ petition in the Allahabad High Court seeking to quash the demand. Counsel for the State and for the electricity licensee opposed entertainment of the writ, pointing out that statutory alternative remedies existed under the U.P. Electricity Supply Code, 2005 and the Electricity Act, 2003. The Court did not examine the correctness of the demand on merits.

HOLDING-UNITS

INTERPLAY · UP-2005:: / EA2003::

writ maintainability — statutory alternative remedy

HOLDING

Where a consumer challenges an electricity demand notice in writ and statutory alternative remedies under the U.P. Electricity Supply Code, 2005 or the Electricity Act, 2003 are available, the High Court will decline to entertain the petition and dismiss it without examining the demand on merits. ¶ 1

FLAG order cites Supply Code 2005 and Electricity Act 2003 without a clause or section number

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ petition challenging an electricity demand notice is not entertainable where statutory alternative remedies under the U.P. Electricity Supply Code, 2005 or the Electricity Act, 2003 remain available. The High Court dismissed the petition without examining the demand on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 21 DECEMBER 2016 FOR RS.85,498

Court declined to examine the challenge on merits because of statutory alternative remedies. ¶ 1